

**IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
GENERAL DIVISION**

THE OTHER WOMAN AND THE WIFE, LLC,	:	CASE NO.: 24 CV 498
	:	
Plaintiff,	:	
	:	
vs.	:	JUDGE STACY M. WALL
	:	
KRISTEN JACOBS,	:	
	:	
Defendant/Counterclaim Third-Party Plaintiff,	:	
	:	
vs.	:	
	:	
CHELSEA SMALLWOOD,	:	
	:	
Third-Party Defendant.	:	TRIAL PROCEDURES ORDER

To assist the parties and counsel in the fair and efficient administration of the trial, the court orders that the following procedures shall be in effect during the trial on the merits in the above captioned case.

1. Counsel shall have met with Ms. Hebb prior to the day of trial to test all technology needed in the courtroom during trial. All discs or other devices of video or audio shall be tested in the courtroom prior to the day of trial to ensure operability on the court's equipment.
2. All objections contained within any video deposition that is to be used as proffered testimony during trial that require a ruling by the court shall be submitted in writing five working days in advance of trial for ruling.
3. Counsel and the parties shall arrive no less than 30 minutes prior to the commencement of trial. At that time, counsel shall be prepared to address the court as to any preliminary matters that are to be heard or discussed outside the hearing of the jury to allow the trial to convene on time.
4. The final draft of Jury Instructions, which were discussed and argued at the Settlement Conference and Final Pretrial Conference, must be submitted to the court and opposing counsel no later than 9:00 A.M. on the first morning of trial unless otherwise directed. All proposed instructions must contain a citation of authority upon which counsel relies. The original of the request for Special Instructions must be filed with the Clerk of Courts prior to the presentation to the court. Counsel shall also provide the court with a copy of the proposed Instructions in

Word format. The Instruction(s) can be submitted as an email attachment and sent to khebb@miamicountyohio.gov.

5. The Plaintiff and counsel will occupy the counsel table at the court's left and Defendants and counsel will occupy the counsel table to the court's right.
6. Counsel shall stand when addressing the court or the jury.
7. All persons shall be addressed by their formal names.
8. Counsel shall not argue between themselves, but shall only address the court or jury.
9. Counsel shall not approach the bench or the jury box without permission of the court. Counsel need not request specific permission from the court to approach the witness. However, counsel shall remain at counsel table or the lectern to question a witness.
10. When stating an objection, counsel shall state only the legal terminology upon which the objection is based without elaboration or argument. Arguments in support of or in opposition to an objection shall be made outside the hearing of the jury.
11. Offers of exhibits and offers to stipulate facts shall be made outside the hearing of the jury.
12. Counsel shall be permitted all proper latitude during *voir dire* to elicit information relevant to exercise of challenges for cause that the Court did not address and relevant to exercise of peremptory challenges.
13. When possible during *voir dire*, counsel shall direct questions collectively to the entire panel. Counsel shall direct follow-up questions only to the prospective jurors located in the jury box and the small section of the gallery. An individual juror may be questioned only if such juror responds affirmatively to questions put to the entire panel, except when counsel is following up or further exploring a question asked of that prospective juror by the court or other counsel. Counsel shall note the subjects of responses of any other prospective members and may further inquire on the subject relating to the response of such person if that person is later seated in the jury box.
14. During *voir dire* the case may not be argued in any way while questioning prospective jurors.
15. During *voir dire* counsel may not engage in efforts to indoctrinate prospective jurors.
16. During *voir dire* the prospective jurors may not be questioned concerning anticipated instructions on theories of law.
17. During *voir dire* the prospective jurors may not be asked what kind of verdict they might return upon any circumstance, nor may counsel solicit promises from the panel members based on hypothetical facts.

18. During *voir dire* counsel shall not repeat questions asked by the court or answered in the jury questionnaires.
19. Peremptory challenges shall be exercised alternatively with the Plaintiffs exercising the first challenge. If any party passes, that party will have thereby used one challenge.
20. The jury will be permitted to take notes during the Trial unless counsel timely objects and supports such objection with good and sufficient grounds prior to the time the jury is sworn.
21. Once the jury is seated, the court will give preliminary instructions related to trial procedure, credibility, weight of the evidence and the duty and function of the jury. It may be reviewed by counsel prior to trial upon request. Any objections to the preliminary instruction shall be timely made prior to the time the jury is sworn. Proposed changes or supplements to the preliminary charge must be submitted, in writing, prior to the time the jury is sworn.
22. Counsel shall have sufficient witnesses to proceed in the taking of testimony until the evening recess at 4:00 P.M. or as established by the court on each day of trial until the party has rested its case. Counsel for Plaintiff(s) shall keep defense counsel and the court apprised of the time when he or she reasonably anticipates the case in chief will conclude to allow opposing counsel a fair opportunity to schedule witnesses for testimony immediately after the Plaintiff(s) has/have rested to avoid the need for a delay or early recess. The same notification obligations are applicable to defense counsel to allow counsel for Plaintiff(s) a fair opportunity to schedule rebuttal witnesses, to allow the court adequate time to prepare a final draft of the Jury Instructions and provide counsel adequate time to review the Instructions prior to closing arguments.

IT IS SO ORDERED.

Stacy M. Wall
JUDGE STACY M. WALL
JR1160 Pg. 134

The clerk shall serve a copy of this Order by regular mail upon:

Margo S. Brandenburg/Anthony V. Graber, Attorneys for Plaintiff and
Third-Party Defendant Smallwood
Morgan K. Napier, Attorney for Defendant/Third-Party Plaintiff Jacobs

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